

Superior Court of the State of California  
County of Orange  
TENTATIVE RULINGS FOR DEPARTMENT NAME  
**HON. YOLANDA V. TORRES**

**Date: September 14, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4<sup>th</sup> 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at [www.occourts.org](http://www.occourts.org).

| # | Case Name                                                                                                                                       | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
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| 1 | <b>First American Title Insurance Company vs. Gomez</b><br><br><b>2025-01460028</b><br><br><b>Demurrer to Cross Complaint</b><br><br><b>CMC</b> | <p>The Demurrer to Cross-Complaint by Cross-Defendant JPMorgan Chase Bank, N.A. is SUSTAINED with leave to amend.</p> <p>Movant demurs to the fifth and sixth causes of action for equitable indemnity and contribution. As of 9/8/26, no opposition has been filed.</p> <p>Movant contends Cross-Complainant "fails to allege any facts whatsoever demonstrating that Chase committed any wrongdoing, owed any duty to Gomez, or engaged in conduct causing Gomez's potential liability in the underlying action filed by First American Title Insurance Company." The only factual allegation against Movant is that it originated and funded a refinance loan in 2003. (§§ 11, 15.) In the fifth claim, the Cross-Complaint merely alleges, "If Cross-Complainant is found liable in the underlying action, such liability was caused in whole or in part by Cross-Defendants' acts or omissions." (§ 44.) In the sixth claim, Cross-Complainant alleges, "Cross-Defendants share responsibility for the damages alleged in the underlying action." (§ 48.)</p> |

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|   |                                                                                                                                                                                                                                              | <p>The Cross-Complaint fails to allege any factual basis for Movant's liability for equitable indemnity and contribution.</p> <p>Therefore, the demurrer is sustained with leave to amend. Cross-Complainant shall file an amended Cross-Complaint within fifteen (15) days of service of notice of this order.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 2 | <p><b>Forbes vs. Forbes</b></p> <p><b>2026-01549362</b></p> <p><b>Demurrer to 1<sup>st</sup> Amended Complaint</b></p> <p><b>Motion to strike Portions of Complaint</b></p> <p><b>CMC</b></p> <p><b>OSC for Failure to Appear at CMC</b></p> | <p>Defendants Jon Forbes and Sherry Forbes' Demurrer and Motion to Strike Portions of the First Amended Complaint, the CMC and the OSC for failure to appear are CONTINUED to <b>November 30, 2026, at 1:45 p.m.</b></p> <p>The parties/counsel failed to meet and confer. Defendants are required to meet and confer "in person, by telephone, or by video conference" at least five days before the date the demurrer and motion to strike are due. (Code Civ. Proc., §§ 430.41, 435.5.) Here, Defendants' responsive pleading was due by 5/13/26, i.e. 30 days after personal service of the FAC. (See Code Civ. Proc., §§ 430.40, subd. (a), 435, subd. (b)(1); ROA 34, 36.) Therefore, the deadline to meet and confer was 5/8/26. Defendants did not attempt to meet and confer until 5/10/26, two days after the deadline. When Plaintiff responded on 5/11/26, they ignored her email and filed the motions about 2.5 hours later. Defendants' untimely meet and confer efforts were inadequate and lacked good faith.</p> <p>The parties/counsel are ORDERED to meet and confer in person, by telephone, or by video conference regarding the issues raised in the demurrer and motion to strike. The parties shall discuss whether an amended complaint would resolve some or all of the issues raised in the demurrer and motion to strike. If so, the parties should submit a stipulation to file an amended complaint.</p> <p>No later than five court days before the continued hearing date, Defendants are ORDERED to file a supplemental declaration describing compliance with this order, including whether any issues were settled by the code compliant meet and confer efforts.</p> <p>Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5.</p> <p>Defendants shall give notice.</p> |
| 3 | <p><b>Trabuco Highlands Community Association vs. Loeffler</b></p> <p><b>2022-01297235</b></p>                                                                                                                                               | <p>Motion to Strike</p> <p>Defendant Jennifer Loeffler's Motion to Strike the Second Cause of Action from the Second Amended Complaint is GRANTED.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |